

11	Saracino v. Rzakhanova	The unopposed demurrer of defendant Gulzhanat Rzakhanova (Defendant) directed to the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) is SUSTAINED with 20 days leave to amend. The motion to strike is MOOT. Defendant is correct that the complaint is uncertain as paragraph 50 recites summarily that Plaintiffs are asserting causes of action for fraud, defamation, intentional infliction of emotional distress, invasion of privacy, negligence, and trespass and conversion, but the pleading contains no separately captioned counts and no identification of which Plaintiff asserts which claim. Thus, Defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against her. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) This defect also renders the complaint in violation of California Rules of Court, rule 2.112, which requires each cause of action to be stated by its number, its nature, the party asserting it if more than one party is represented on the pleading, and the party or parties to whom it is directed. (See CRC 2.112.) Plaintiffs failed to oppose the demurrer. As such, Plaintiffs implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the Court notes that Plaintiffs attempted to file an amended complaint on September 2, 2026, but the filing was rejected as it was untimely filed and leave of court was thus required. (See Notice of Rejection at ROA 67; see also Code Civ. Proc., § 472(a).) It thus appears Plaintiffs are in agreement an amended complaint is needed. Accordingly, the demurrer based on uncertainty is SUSTAINED with 20 days leave to amend. The Court does not reach Defendant's remaining arguments at this time. Defendant's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Given the ruling to sustain the demurrer with leave to amend, the motion to strike is MOOT. Defendant shall give notice.
12	Daniels v. Lennar Homes of California	Counsel Sultana S. Kelantan's of Libra Law Firm's motion to be relieved as counsel of record for plaintiffs Eian Daniels and Arely Ramirez is CONTINUED to October 12, 2026, at 2:00 p.m. in Department N17. There is no proof of service showing the motions and supporting papers were served on the clients. (Cal. Rules of Court, rule 3.1362(d); Code of Civ. Proc. § 1005, subdivision (b).) At least 7 days before the next hearing date, counsel shall file a proof of service. Counsel for Plaintiffs shall give notice of this ruling.